COMMONWEALTH OF MASSACHUSETTS

APPEALS COURT

HAMPDEN, ss. DOCKET NO. 2022-P-0300

Cassandra Ferreira
Plaintiff-Appellee

v.

Laural Charland & Others
Defendants-Appellant

On Appeal from a Judgment of the Western Division Housing Court (Lower Court Docket No. 20H79SP001676)

Brief of Cassandra Ferreira

Plaintiff-Appellee

Date: 06/15/2022

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STATEMENT OF ISSUES

The issue presented for review is whether the Housing Court, in a summary process action, correctly found that the landlord's tender of full compensation to the tenant for the tenant's claim under G.L. c. 186, § 22, the water use statute, and the tenant's acceptance of such compensation without reservation of rights, satisfied and resolved the claim such that it can not be used to trigger a defense to possession under G.L. c. 239, § 8A.

STATEMENT OF THE CASE

The Plaintiff-Appellee, Cassandra Ferreira ("Ms. Ferreira" hereinafter), owns a single-family home in Ludlow, MA. Record Appendix ("RA" hereinafter) at 43. Ms. Ferreira resided at the house until she rented the premises to the Defendants, Laural Charland, Jason Charland and James Vasquez in late 2016. RA 44; Supplemental Record Appendix ("SRA" hereinafter) at 17. On October 20, 2020, after the Massachusetts eviction moratorium ended, Ms. Ferreira served a no-fault notice to quit terminating the tenants' tenancy at will, because she needs the property back so that she can live in her home again. RA 9, 52-53. On

December 14, 2020, after the notice to quit expired, Ms. Ferreira commenced a summary process case. RA 10. On March 2, 2021, the Defendant-Appellant, Laural Charland ("Ms. Charland" hereinafter) and James Vasquez each filed an answer with counterclaims alleging violations of the security deposit statute (G.L. c. 186, § 15B) and the water use statute (G.L. c. 186, § 22).[1] RA 5, 12.

On or about March 3, 2021, and upon demand, Ms. Ferreira returned to the tenants the security deposit of $1,050.00 plus three times the amount of interest that had accrued on the security deposit and last month's rent, for a total payment of $1,080.00. SRA 26-27.

In addition and prior to trial, in March and May 2021, Ms. Ferreira returned monies to the tenants amounting to three (3) times a month's rent for any potential water and sewer charges and damages, for a total payment of $3,615.00. SRA 30-31. This payment exceeded not only the amount of actual water and sewer charges or more than two (2) times such charges but equaled three (3) times a month's rent. Id.

[1] Jason Charland did not file an answer. RA 4-8.

Also prior to trial, Ms. Ferreira filed two motions *in limine* – one to preclude any testimony as to the alleged security deposit violation and another to preclude any testimony on the alleged violation of G.L. c. 186, § 22. SRA 3, 4. Ms. Ferreira's motion *in limine* regarding the security deposit claim was allowed by assent. RA 23. As to the water use claim, the court received briefing from the parties but reserved the issue for trial. SRA 5-16. The landlord argued that water and sewer claim should be dismissed as the issue was moot. SRA 5-9. Ms. Charland argued that she should be able to assert at trial a defense to possession despite being fully reimbursed. SRA 10-16.

A bench trial was conducted on June 21, 2021.[2] RA 7, 26. Counsel for Ms. Ferreira and Ms. Charland presented argument concerning the status of a potential defense to possession under G.L. c. 239, § 8A based on the water use claim. RA 33-42. The bulk of the testimony at trial related to the issue of a stay of execution pursuant to G.L. c. 239, § 9. RA 43-90.

[2] Attorney Gabriel Fonseca appeared as LAR counsel for Ms. Charland. Jason Charland appeared at trial *pro se*. James Vasquez did not appear at trial. RA 26.

Following trial, on June 25, 2021, the judge ruled that the tenants may not assert the water violation claim as a defense to possession under G.L. c. 239, § 8A, given that the landlord tendered all the funds to the tenants for the damages asserted under that claim, which were knowingly accepted without any reservation of rights. RA 27. As such, the tender and acceptance satisfied and resolved the tenants' claim and could not be used to trigger a defense to possession under G.L. c. 239, § 8A. Id. The judge also stayed judgment for possession to Ms. Ferreira until September 1, 2021 and granted the tenants until August 31, 2021 to vacate the premises under G.L. c. 239, § 9. RA 28. In allowing such a stay, the court noted that Ms. Charland and her brother were disabled and that Ms. Charland testified to an extensive housing search. RA 27. The court also considered Ms. Ferreira's dire straits including her protracted living on a couch in her parents' basement and her imminent treatment for a medical condition at the end of August 2021 which would require a slow recovery, hopefully not on her parents' couch. RA 27-28.

On August 20, 2021, Ms. Charland filed a motion requesting a further stay of judgment and use of any

execution for at least two (2) more months. SRA 32. The grounds for the motion included that Ms. Charland is physically disabled and had made a diligent search but that she needed additional time due to the current housing market and the coronavirus pandemic. Id.

On August 26, 2021, after hearing and weighing the equities, the court denied Ms. Charland's motion and ordered judgment for possession to enter and execution to issue in due course. SRA 39.

On August 30, 2021, Judgement of Summary Process for Plaintiff entered for possession and for no money damages. SRA 40. On September 9, 2021, Ms. Charland filed a notice of appeal of the judgment. RA 29.

STATEMENT OF THE FACTS

Ms. Ferreira owns no other property aside from her house in Ludlow. RA 43. Prior to the tenancy at issue in this case, Ms. Ferreira had never been a landlord. RA 44. At the time Ms. Charland began renting the premises from Ms. Ferreira in 2016, the house had been Ms. Ferreira's primary residence for approximately three and one-half years. RA 44; SRA 17. Ms. Ferreira moved from the premises when she moved into the home of her then boyfriend. RA 44. As she had

never been a landlord, she rented the premises for an amount that would only cover her mortgage and maybe some amount of the taxes. RA 44-45. In March 2020, Ms. Ferreira and her then boyfriend terminated their relationship. RA 46-47. In July 2020, Ms. Ferreira informed Ms. Charland of the end of her relationship with her boyfriend and that, as a result, she would need her house back in order to live there. RA 47. At the time, an eviction moratorium was in effect so that she could not serve the tenants with a notice to quit. RA 52-53.

At the inception of the tenancy, the tenants agreed, in writing, to pay for utilities including water and sewer charges. SRA 17. As the premises is a single-family house, the tenants have never been charged, nor paid, for any water that they did not consume for their own use. Ms. Charland's answer and counterclaim included an allegation that "[t]he landlord required me to pay for water in violation of G.L. c. 186, § 22." RA 18. The counterclaim did not contain any specific allegation as to which requirements of the water use statute Ms. Charland claims the landlord violated. Id. Notably, Ms. Charland did not allege any breach of quiet enjoyment

under G.L. c. 186, § 14 for "interference with utilities" and she did not check the box on her answer form that the landlord "[d]id not pay for utilities that were the landlord's responsibility." RA 17. Ms. Charland did not testify at trial concerning the water use violation. RA 60-82. The only potential manner in which Ms. Ferreira ran awry of the water use statute is that there were not water conservation devices installed at the property. SRA 5-6. As the most important issue for Ms. Ferreira was to regain possession of her home so that she had a place to live, she promptly returned to the tenants both the security deposit plus interest and monies to reimburse the tenants for the water charges and potential damages. SRA 24, 26, 30, 31.

Ms. Ferreira testified at trial that she did not have sufficient funds to pay the mortgage on the premises and to rent herself an apartment. RA 49. Since about July 2020, when Ms. Ferreira informed the tenants of her need to move back into her house, Ms. Ferreira had been "couch surfing" at a friend's place and at her parents' house. RA 50-52. Ms. Ferreira was living in the partially finished, unheated basement of her parent's house and sleeping on a couch. Id. Ms.

Ferreira is a ballet teacher and she had lost substantial business during the COVID-19 pandemic. RA 48. At the time of trial, Ms. Ferreira was scheduled for a medical surgical procedure which required her to have a stable home for recovery to accommodate her restricted mobility with no stairs. RA 55-57; SRA 28-29.

Now one (1) year after the summary process trial in this case and almost two (2) years after Ms. Ferreira first informed the tenants that she needed her house back, Ms. Charland remains in possession of Ms. Ferreira's house.

ARGUMENT

I. INTRODUCTION

The Housing Court correctly concluded that the landlord's tender of funds to the tenant prior to trial, which the tenant accepted without reservation, satisfied any potential damages under G.L. c. 186, § 22, such that the tenant could not then assert such a claim at trial to trigger the application of G.L. c. 239, § 8A as a defense to possession. RA 27. The Section 8A defense to possession was not available as there was no "amount" that the court could find "to be

due the tenant" by reason of the counterclaim for alleged violation of G.L. c. 186, § 22.

II. STANDARD OF REVIEW

The standard of review applicable to issues of statutory construction, as questions of law, is *de novo*. Commerce Ins. Co. v. Commissioner of Ins., 447 Mass. 478, 481 (2006). A reviewing court's "primary duty in interpreting a statute is to effectuate the intent of the Legislature in enacting it." Allegaert v. Harbor View Hotel Owner LLC, 180 N.E.3d 459, 463 (Mass. App. Ct. 2021), citing and quoting Spencer v. Civil Serv. Comm'n, 479 Mass. 210, 216 (2018) (quotation marks omitted). "Ordinarily, where the language of a statute is plain and unambiguous, it is conclusive as to legislative intent." Id., citing Abuzahra v. Cambridge, 486 Mass. 818, 822 (2021) (quotation omitted). "[W]here the statutory language is ambiguous or unclear, we consider the cause of its enactment, the mischief or imperfection to be remedied and the main object to be accomplished, [such that] the purpose of its framers may be effectuated." Id. (citation and quotation omitted).

However, the more narrow "clear error" standard of review applies to findings of fact made by a judge,

particularly where the findings rest on credibility determinations. An appellate court is "bound by a judge's findings of fact that are supported by the evidence, including all inferences that may reasonably be drawn from the evidence...A finding of fact by the trial judge will not be deemed 'clearly erroneous' unless the reviewing court on the entire evidence is left with the definite and firm conviction that a mistake has been committed." White v. Hartigan, 464 Mass. 400, 414 (2013) (citations omitted).

Finally, the narrow "abuse of discretion" standard of review applies to rulings that require application of legal principles to a set of facts. Great deference is afforded to a judge's exercise of discretion. L.L. v. Commonwealth, 470 Mass. 169, 185 at fn. 27 (2014). An abuse of discretion occurs where a judge makes a clear error of judgement in weighing the factors relevant to a discretionary decision such that the decision falls outside the range of reasonable alternatives. Id.

III. THE DEFENSE TO POSSESSION UNDER SECTION 8A WAS UNAVAILABLE AS THERE WAS NO AMOUNT THAT COULD BE FOUND BY THE COURT "TO BE DUE" TO THE TENANT FOR THE ALLEGED VIOLATION OF LAW

Contrary to Ms. Charland's argument, a tenant cannot assert the defense to possession under G.L. c. 239, § 8A merely by demonstrating a claim against or violation of law by the landlord. The plain language of the statute requires a finding by the trial court that there is some amount, greater than zero, presently due and owing to the tenant by reason of a counterclaim permitted under the statute. The fifth paragraph of G.L. c. 239, § 8A, provides as follows, with the first two sentences separated here:

> There shall be no recovery of possession under this chapter if the amount found by the court **to be due** the landlord equals or is less than the amount found **to be due** the tenant or occupant by reason of any counterclaim or defense under this section.
>
> If the amount found **to be due** the landlord exceeds the amount found **to be due** the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section.

G.L. c. 239, § 8A, fifth para. (emphasis added).

Pursuant to the plain language of the statute, first sentence, a valid defense to a landlord's claim

of possession requires a finding by the trial court of some amount of money due and owing to the tenant, either in an amount equal to what is owed to the landlord or greater than what is owed to the landlord. The use of the words "to be due" the landlord and "to be due" the tenant signifies amounts that are, as of yet, unpaid to the other party. The Legislature utilized specific language referencing the present status, not the past, with a presumption of future payment. So, for example, if the court finds that the amount due to the landlord is $100 and the amount due to the tenant is $100, then the tenant keeps possession, under the first sentence. Further, if the court finds that the amount due to the landlord is $50 and the amount due to the tenant is $100, then the tenant keeps possession, under the first sentence. Moreover, if the court finds that the amount due to the landlord is $100 and the amount due to the tenant is $50, then the tenant has the opportunity to pay the difference (plus interest and costs) within one week and retain possession, under the second sentence.

However, if there is no amount to be found due the landlord and there is also no amount to be found due the tenant, then the tenant may not keep

possession under Section 8A. Zeros on both sides of the analysis cannot trigger the tenant's defense to possession. If this were not the case, then an anomalous result would be permitted where, for example, in a no-fault case where there is no unpaid rent or use and occupancy, and where the tenant has asserted a Section 8A counterclaim but loses on that counterclaim at trial (perhaps the court finds that a minor condition at the premises does not amount to a breach of the warranty of habitability), then the tenant would still get to keep possession despite losing her counterclaim. Such an outcome could not have been intended.

In other words, if there is no amount due and owing to the landlord and no amount due and owing to the tenant, the tenant cannot assert the defense to possession. A tenant cannot defeat a landlord's claim to possession under Section 8A merely by the tenant raising a claim for a violation of law intended for the protection of tenant's rights in the landlord-tenant relationship. A tenant has to prove and be owed some amount of damages.

This interpretation of the statute aligns with the broader concept of damages. In general, an element

of a claim is damages and damages must be proved. Here, Ms. Charland did not prove any damages at trial. She did not present any evidence of damages related to the water use issue. RA 60-82. In fact, her counsel conceded at trial that Ms. Charland has been made whole by Ms. Ferreira's payments. RA 39. See Kattar v. Demoulas, 433 Mass. 1, 15-16 (2000) ("A fundamental principle on which the rule of damages is based is compensation. Compensation is that amount of money that reasonably will make the injured party whole. Compensatory damages may not exceed this amount. Anything beyond that amount is a windfall.") A plaintiff must sustain her burden of proving the amount of her loss with reasonable certainty. Agoos Leather Cos. v. Am. & Foreign Ins. Co., 342 Mass. 603, 608 (1961). Damages must be reasonably ascertainable from the evidence. Dalton v. Demos Bros. Gen. Contractors, Inc., 334 Mass. 377, 378 (1956). See also Hershenow v. Enterprise Rent-a-Car Company of Boston, Inc., 445 Mass. 790 (2006).

To the extent that Ms. Charland attempts to argue in her brief on appeal that Ms. Ferreira failed to compensate her for attorney's fees, the argument is unavailing. First and foremost, Ms. Charland did not

raise the issue of attorney's fees below and, as a consequence, she cannot raise it for the first time on appeal. SRA 10-15; RA 36-37, 39-41, 91-92. "An issue not raised or argued below may not be argued for the first time on appeal." Carey v. New England Organ Bank, 446 Mass. 270, 285 (2006), quoting Century Fire & Marine Ins. Corp. v. Bank of New England-Bristol County, N.A., 405 Mass. 420, 421 at fn. 2 (1989) (quotation marks omitted). "In order to raise an issue on appeal, a party must lodge a specific objection on the record." Ciccarelli v. School Dept. of Lowell, 70 Mass. App. Ct. 787, 799 (2007), citing Mass. R. Civ. P. 46. Second, Ms. Charland is not entitled to attorney's fees on her counterclaim based on the water use statute as the statute does not specifically provide for same. G.L. c. 186, § 22. Nor was Ms. Charland eligible for attorney's fees under G.L. c. 186, § 14 or G.L. c. 93A, as she brought neither a breach of quiet enjoyment claim nor a consumer protection claim based on the water use issue. RA 12. Finally, Ms. Charland cannot assert a claim to attorney's fees in order to establish damages for purposes of the calculation of amounts due under Section 8A. Except in very narrow circumstances,

attorney's fees do not constitute damages. See Columbia Chiropractic Group, Inc. v. Trust Ins. Co., 430 Mass. 60, 63 (1999), citing Jet Line Servs., Inc. v. American Employers Ins. Co., 404 Mass. 706, 718 (1989). As such, the landlord was not required to pay the tenant any attorney's fees. Krock v. Krock, 46 Mass. App. Ct. 528, 531 at fn. 2 (1999) ("As a general rule in Massachusetts, a litigant must bear his own expenses including attorney's fees, except where a statute permits the award of costs, a valid contract [or] stipulation provides for costs, or rules concerning damages permit [] recovery")(citation omitted).

Even if the language of Section 8A might be construed as ambiguous when applied to the scenario at issue here, the intent of the Legislature in enacting the statute, and its legislative history, indicate a desire to protect tenants, but not a desire to punish landlords. In fact, the section protects the landlord's right to the fair value of use and occupation of the premises and provides for payment procedures pending the summary process action, as well as providing that, where a tenant owes the landlord a balance due and elects to take advantage of the

statutory 7-day payment option, the tenant still must pay the landlord's costs of suit and interest. And while the legislative history reflects "an intent to provide tenants with a broad set of defenses and counterclaims in the summary process action," Meikle v. Nurse, 474 Mass. 207, 213-214 (2016), this does not mean that the Legislature intended that a tenant may defeat possession when a landlord corrects a potential economic error prior to trial and compensates the tenant more than the charges paid for water and sewer. The violation here, a lack of water conservation devices, did not impact the availability, quality or condition of water provided to the premises during the tenancy. The only impact was a potential consumption of an amount of water at a rate higher than if low-flow devices had been in place. Again, those entire charges were more than reimbursed to the tenants, leaving nothing left to litigate. There were no damages to account for.

Ms. Ferreira is not a professional landlord and would not fall into the category of those landlords and property owners in the business of renting residential premises for commercial profit and who are the focus of much of the legislation around regulating

residential tenancies. Summary process is intended to be expeditious, and its procedure should not be manipulated into protracted proceedings which have the effect of withholding rightful possession of a residential property from its owner. See Hodge v. Klug, 33 Mass. App. Ct. 746 (1992) and Brown, J. (concurring opinion). The Defendant "must surely [] appreciate[] that the owner of a residential property such as this one was entitled to end an informal arrangement for the occupation of [her home], and that the case would end in a judgment so providing." Hodge v. Klug, 33 Mass. App. Ct. at 758.

Moreover, to read Section 8A in the manner argued by Ms. Charland in these circumstances would discourage landlords from promptly correcting errors, in particular technical errors where the potential remedy is fairly calculable, after a tenant brings the issue to her attention. A landlord would be disincentivized to promptly correct the oversight after notice of a complaint if she still could not regain possession after compensating the tenant for the oversight. This interpretation would have the effect of discouraging proactive behavior and resolution where we generally favor encouraging such

settlement and resolution of legal issues. This policy is reflected in such rules and laws as Mass. R. Civ. P. 68 concerning offers of judgment which encourage offers where liability is clear in order to shift responsibility for further litigation costs; and G.L. c. 93A concerning an offer of settlement in response to a 30-day demand letter which can potentially limit the amount recoverable by a plaintiff if the court finds the offer reasonable. Mass. R. Civ. P. 68; G.L. c. 93A, § 9(3).

Ms. Charland recognizes that the Housing Court has held that upon a landlord's payment of statutory damages due under G.L. c. 186, § 15B, upon demand by the tenant, the tenant cannot successfully assert a defense to possession under Section 8A. Cruz v. Norat-Reyes, 17-SP-181, March 1, 2017 (Housing Ct., Western Div.)(Fields, J.). It is accurate that the security deposit statute specifically sets forth a "cure opportunity" to a landlord whereby the tenant's claim for damages arises only if the landlord fails to return to the tenant the forfeited security deposit upon demand. The water use statute has no comparable cure language. However, it must also be noted that the water use statute also does not contain any specific

penalty provisions for a landlord's failure to adhere to certain requirements for charging tenants for their water use, while the security deposit statute provides hefty penalty provisions for treble damages, costs and attorney's fees. In other words, the Legislature specifically laid out detailed penalty provisions in the security deposit statute because it "views violations of the security deposit statute, G.L. c. 186, § 15B, as serious violations." Meikle v. Nurse, 474 Mass. 207, 213 (2016). It cannot be that a landlord's remedying of a serious security deposit claim upon demand will render obsolete a tenant's defense to possession under Section 8A, while a landlord's remedying of a minor, technical violation of the water use statute will nonetheless allow a tenant to retain possession even where there is nothing owed to the tenant.

To the extent the court exercised any discretion, it did not abuse that discretion in applying Section 8A. Given the equities at issue and the relatively minor and technical violation of the water use statute that did not concern an issue of habitability or quiet enjoyment, being merely economic in nature, and where the landlord reimbursed arguably much more than the

tenant could have received as damages, the court was within its discretion to find the defense inapplicable and/or waived and to grant possession to the landlord. The Supreme Judicial Court, in analyzing a security deposit counterclaim, has interpreted "the Legislature's intent in providing for the tenant's right to retain possession as a time-limited equitable remedy for the particular conduct underlying the tenant's defense or counterclaim." Meikle v. Nurse, 474 Mass. 207, 214 (2016). Here, there was no abuse of discretion where the only counterclaims related to the security deposit and the water use, the tenants were fully compensated for both, and the landlord desperately needed her home back, when the court finally issued a judgment for possession.

For all of the foregoing reasons, Ms. Charland's claim under G.L. c. 186, § 22 was moot and could not be used to trigger a defense to possession under G.L. c. 239, § 8A.

IV. THE TENANT ACCEPTED THE REIMBURSEMENT WITHOUT RESERVATION OF RIGHTS AND THE WATER USE CLAIM WAS THEREBY SATISFIED AND RESOLVED

Ms. Charland attempts to argue that typical contract principles should apply in this case and that

she did not expressly agree to resolve her claim. As argued above, pursuant to the plain language of Section 8A, Ms. Charland was simply not able to assert the defense to possession as she was not owed any amounts. Therefore, an analysis of offer/acceptance is not applicable. However, assuming *arguendo* that some typical contract principles might apply in this situation, Ms. Charland indeed received the funds, she did not return the funds to the landlord, she did not accept the funds with a reservation of any rights, and she has received legal representation. Indeed, she conceded at trial, through counsel, that she had been made whole. She took no steps to preserve a potential defense to possession at trial. In these circumstances, the court did not err when it ruled that the landlord "tendered all the funds for the damages asserted under [the water use] claim and that they were knowingly accepted by the tenants without any reservation of rights" and that "such tender and acceptance satisfied and resolved the tenants' claim under G.L. c. 186, s. 22[.]" RA 27. These findings were supported by the evidence and argument at trial. Ms. Charland offered no evidence of any rejection of the funds or any reservation of rights.

Ms. Charland cites Henry v. Bozzuto Mgmt. Co., 98 Mass. App. Ct. 690 (2020), for the proposition that even where the amount of damages has been resolved and accounted for, judgment on the legal claim still should enter. The case is distinguishable, however, for the simple fact that the case does not address the unique and important issue of possession of residential premises in a summary process case; it concerned claims for violation of the security deposit statute and Chapter 93A. The case is further distinguished by the fact that the former tenants there specifically rejected both the property manager's settlement offer made in response to the Chapter 93A demand letter and thereafter rejected the property manager's tender of the amount demanded by the tenants to settle their individual claims (the property manager also never made an offer to resolve the purported demand on behalf of all similarly situated former tenants). Here, Ms. Charland did not reject the payments made by Ms. Ferreira, either affirmatively or impliedly. There was no evidence in the record that she returned the payments or informed Ms. Ferreira's counsel that she rejected the tender. Ms. Charland retained the payments. Now, Ms. Charland

wants to have her cake and eat it too by retaining the benefits of the compensation and by claiming a defense to possession nonetheless. However, she is estopped from doing so.

Finally, Ms. Charland cites to Meikle v. Nurse in her brief to console landlords with the decision's clarification that Section 8A "does not impose an obligatory tenancy on the landlord. Nothing in the statute prevents the landlord from bringing a second summary process action for possession after he or she has remedied the violation of the security deposit statute." Meikle v. Nurse, 474 Mass. 207, 214 (2016). In the circumstances of this matter, the proposition is cold comfort. Ms. Ferreira indeed did commence a second no-fault summary process action to regain possession of her home, despite having won possession in the first case. However, the Housing Court has stayed those proceedings at Ms. Charland's request pending the outcome of her appeal in this action, further delaying the moment when Ms. Ferreira will be

able to move back into her home. See Western Division Housing Court Docket No. 21-SP-3526.[3]

CONCLUSION

For all the foregoing reasons, the Plaintiff-Appellee, Cassandra Ferreira, hereby requests that the judgment of the Housing Court granting possession of the premises to the landlord be affirmed.

Respectfully Submitted,

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[3] In that matter, on Ms. Ferreira's petition to a single justice of this Court for review of the Housing Court's allowance of a stay of proceedings, the single justice decided there was no clear error of law or an abuse of discretion. See Docket No. 2022-J-0224, docket entry dated May 2, 2022.

ADDENDUM

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COMMONWEALTH OF MASSACHUSETTS

TRIAL COURT

Hampden, ss:

HOUSING COURT DEPARTMENT

WESTERN DIVISION

CASE NO. 20-SP-1676

CASSANDRA FERREIRA,

Plaintiff,

v.

LAURAL CHARLAND, JASON CHARLAND, and JAMES VASQUEZ,

Defendants.

ORDER

This matter came before the court for hearing on June 22, 2021, at which the plaintiff landlord appeared with counsel and the defendant tenant Laural Charland appeared with counsel along with co-defendant Jason Charland who appeared pro se. After said hearing, the following order shall enter:

1. **Preliminary Matter: Water Charges under G.L. c.186, s.22:** There is no question that the tenants asserted a claim that the landlord violated G.L. c.186, s.22. and there is also no question that such claim triggers "violation of any other

law" under G. L. c. 239, s.8A. The question posed by this case is whether after the landlord tendered full compensation to the tenant for her claim under G.L. c.186, s.22 can she still assert said claim at trial to trigger the application of G.L c. 239, s.8A as a defense to possession. Given that the landlord tendered all the funds for the damages asserted under that claim and that they were knowingly accepted by the tenants without any reservation of rights, such tender and acceptance satisfied and resolved the tenants' claim under G.L. c.186, s.22 and it can not be used to trigger a defense to possession under G.L. c.239, s.8A.

2. **G.L. c.239, s.9:** The parties were also heard on the tenants' request that judgment be stayed in accordance with G.L. c.239, s.9. Pursuant to that statute, the court is directed to hear from all parties and achieve an order and an extension of time, if warranted, that is "just and reasonable". This is often a difficult task for a court but the facts of this matter make it extremely difficult as both sides present very compelling needs and circumstances.
3. The tenants (Laural Charland and her brother Jason Charland) are both disabled and have limited income from Social Security benefits and food stamps. Ms. Charland testified credibly of her very extensive housing search in all towns around and between Ludlow and Agawam, other than avoiding inner-city locations.
4. The landlord also finds herself in dire straits, mostly residing on a couch in her parents' basement for a very protracted time and with no other options available to her until she can re-possess the subject premises for her own residence. Ms. Ferreira also reported to the court that she has a medical condition that will

require her to have a procedure at the end of August, 2021 and will require a slow recovery thereafter---of course, a recovery hopefully not on her parents' couch.

5. **Order:** In accordance with G.L. c.239, s.9, judgment shall be stayed until September 1, 2021 and the tenants have until August 31, 2021 to vacate the premises and are required to pay use and occupancy through their vacating the unit.

So entered this 25th day of June, 2021.

Robert Fields, Associate Justice

Cc: Court Reporter

Judgment of Summary Process For Plaintiff	Docket Number 20H79SP001676	Commonwealth of Massachusetts Housing Court Department

RE: Cassandra Ferreira vs. Laural Charland et al

Plaintiff(s) who are parties to this Judgment:	Western Housing Court 37 Elm Street P.O. Box 559 Springfield, MA 01102-0559 (413)748-7838
Cassandra Ferreira	
Defendant(s) who are parties to this Judgment:	**Premises Address:**
Laural Charland Jason Charland James Vasquez	51 Ray Street Ludlow, MA 01056

After coming before the court, the issues having been duly tried or heard, and a finding or verdict having been duly rendered, IT IS ORDERED AND ADJUDGED by the court (Fields, J.) that the Plaintiff(s) named above recover of the Defendant(s) named above Judgment in summary process for possession of the premises listed above and money damages as follows:

Date of Breach, Demand or Complaint	12/14/2020
Date Judgment Entered	08/30/2021
Pre Judgment Interest as provided by law from 12/14/2020 to	$
Damages	$
Double or Treble Damages Awarded by Court	$
Filing Fee & Surcharge	$
Other Costs Awarded by Court	$
Other Costs	$
Court Ordered Attorney Fees	$
Judgment Total Payable to Plaintiff(s)	**$0.00**

Further orders of the court:

Entered and notice sent on August 30, 2021.

/s/Michael J Doherty
Clerk - Magistrate

§ 186:22. Use of submetering equipment

(a) For the purposes of this section the following words shall have the following meanings:-

"Common area", any portion of a building with more than 1 dwelling unit that is not incorporated within a dwelling unit.

"Customer service charge", a fixed amount charged by a city or town or water company for providing water to a building.

"Dwelling unit", any house or building, or portion thereof, that is occupied, designed to be occupied, or is rented, leased or hired out to be occupied, as a home or residence of one or more persons.

"Landlord", the owner, lessor or sublessor of a dwelling unit, the building of which it is a part, or the premises wherein a customer receives water service through metered measurement.

"Submetering", use of a meter by a landlord who receives water from a water company, which meter measures water supplied to a dwelling unit to enable the landlord to charge the tenant of the dwelling unit separately for water usage, or which meter measures water supplied to a common area.

"Water company", a company, as defined in section 1 of chapter 165 or a municipal utility or any other waterworks system owned, leased, maintained, operated, managed or controlled by any unit of local government under any general or special law, which company, utility or system supplies water to a landlord through metered measurement. Any landlord imposing charges on tenants or otherwise engaging in any activity permitted under this section shall not be deemed thereby to be functioning as a water company as defined herein or to be subject to any laws or regulations regulating any such company.

"Water conservation device", for all showers, shower stalls, shower compartments or shower baths, a low-flow showerhead which shall have a maximum flow rate not exceeding 2 1/2 gallons of water per minute, for all faucets a maximum flow rate not exceeding 2 and 2/10 gallons of water per minute and for all water closets, ultra-low-flush water closets not exceeding 1 and 6/10 gallons of water per flush, contained within a dwelling unit.

(b) A landlord may cause to be installed by a plumber licensed in the commonwealth, at the expense of such landlord, submetering equipment in the landlord's building to measure the quantity of water provided for the exclusive use of each dwelling unit, provided that such equipment meets the standards of accuracy and testing of the American Water Works Association

or a similar accredited association; and provided further, that a submeter is installed for each dwelling unit in the building and for the common areas of the building, so that all water used in a building is measured by both a primary meter and a submeter.

(c) A landlord may charge a tenant of a dwelling unit for water usage as measured through the use of submetering equipment only in accordance with this section and only upon the landlord certifying that the dwelling unit is in compliance with this section to a board of health, health department or other municipal agency or department charged with enforcement of the state sanitary code. All provisions of this section allowing landlords to charge tenants for water usage shall also be deemed to apply to sewer service charges calculated by means of the same primary meter or submeter. Certification by the landlord shall be provided under the penalties of perjury and shall include a statement that: 1) the dwelling unit is eligible for the imposition on the tenant of a charge for water usage in accordance with paragraph (d); 2) all showerheads, faucets, and water closets in the dwelling unit are water conservation devices and that all water closets were installed by a licensed plumber; and 3) the water submeter measuring the use of water in the dwelling unit was installed by a licensed plumber and is in compliance with the standards of accuracy and testing referenced in subsection (b).

(d) A dwelling unit shall become eligible for the imposition on the tenant of a charge for water usage only upon the commencement of a new tenancy in such dwelling unit and only if: (1) the dwelling unit is being occupied for the first time; or (2) the previous tenant vacated the dwelling unit voluntarily, or was evicted from the dwelling unit for nonpayment of rent or for breach of lease or noncompliance with a rental agreement for the dwelling unit; provided, however, that a dwelling unit shall not be deemed eligible for submetering if the new tenant relocated involuntarily from another dwelling unit in the same building or building complex; and provided further, that once a tenant of a dwelling unit has been charged for the use of water in accordance with this section, such dwelling unit shall remain eligible for the imposition of a charge for the use of water in all subsequent tenancies; and provided further, that a licensed plumber employed by or under contract with the landlord may perform any work in a dwelling unit as is required by this section to allow for the imposition on a tenant of a charge for the use of water, even if such unit is occupied by a tenant upon whom a charge for the use of water cannot be imposed.

(e) A landlord may not charge the tenant of a dwelling unit separately for water usage measured by a submeter, nor allow such tenant to be so charged, unless the submeter measures only water that is supplied for the exclusive use of the particular dwelling unit and only to an area within the

exclusive possession and control of the tenant of such dwelling unit and does not measure any water usage for any portion of the common areas or by any other party or dwelling unit; provided further, that a landlord shall not charge such tenant for water supplied through a submeter to the dwelling unit prior to the landlord installing fully functional water conservation devices for all faucets, showerheads and water closets in the dwelling unit; and provided further, that the landlord shall ensure that such water conservation devices are installed and functioning properly at the commencement of each subsequent tenancy in such dwelling unit.

(f) A landlord may not charge the tenant separately, nor allow tenant to be charged separately, for submetered water usage unless the tenant has signed a written rental agreement that clearly and conspicuously provides for such separate charge and that fully discloses in plain language the details of the water submetering and billing arrangement between the landlord and the tenant. Each bill for submetered water usage shall clearly set forth all charges and all other relevant information, including, but not limited to, the current and immediately preceding submeter readings and the date of each such reading, the amount of water consumed since the last reading, the charge per unit of water, the total charge and the payment due date. Such charges shall be billed to the tenant in at leased as many periods as the landlord is billed by the water company providing such water to the building or such payments may be made on a monthly payment schedule as agreed to in the written rental agreement; provided, however, that if the landlord bills the tenant on a monthly basis, payment of the bill by the tenant shall be due 15 days after the date the bill is mailed to the tenant, but if the landlord bills the tenant at intervals greater than 1 month, payment of the bill by the tenant shall be due 30 days after the date the bill is mailed to the tenant. If the tenant fails to make such payment, such nonpayment shall be a material breach of the written rental agreement. Violation of such breach may be cured by payment of the water charges in full prior to any court hearing to adjudicate such violation.

(g) A landlord shall determine a calculated cost per unit of water consumption by dividing the total amount of any bill or invoice provided to the landlord from the water company for water usage, the customer service charge and taxes, but not including any interest for the late payment, penalty fees or other discretionary assessments or charges, for all water provided to the premises through the water company meter in that billing period, by the total amount of water consumption for the entire premises. The total amount charged separately to each submetered dwelling unit for water usage for any billing period shall not exceed such calculated cost per unit of water multiplied by the number of units of water delivered exclusively to the particular dwelling unit for the same billing period,

provided that the landlord has verified that the total amounts of water usage measured by all submeters in the building, including all submeters for common areas, does not exceed the total amount of water usage in the building for the same billing period as shown on such bill or invoice.

(h) Whenever a tenancy in a dwelling unit commences after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall mail to the tenant on the first day of such tenancy the reading on the submeter for the dwelling unit as of that day. The landlord may thereafter bill the tenant only for the water measured on the submeter subsequent to such reading.

(i) Whenever a tenancy in a dwelling unit terminates after the beginning, but before the end, of a billing period for which the landlord has not been billed by the water company, the landlord shall give to the tenant on the last day of such tenancy the reading on the submeter for the dwelling unit as of that day together with a final bill for water usage in the dwelling unit since the last prior reading of the submeter for such dwelling unit. The landlord shall charge the same rate for the water used by the tenant as the water company charged in the last bill issued to the landlord. Notwithstanding paragraph (f), the bill shall be immediately due and payable by the tenant. If the tenant does not pay the bill, the landlord may deduct the amount of the bill from any security deposit paid by the tenant in accordance with section 15B of chapter 186, prior to returning the balance of the security deposit, if any, to the tenant. If the landlord is not able to give the final reading on the submeter for the dwelling unit together with a final bill for water usage to the tenant on the last day of the tenancy, the landlord shall mail such reading and such final bill to the tenant no later than the day after the termination of the tenancy. If the water company subsequently charges the landlord a lesser rate than the landlord charged the tenant in the final bill, the landlord shall recalculate the bill forthwith based on the lesser rate and mail to the tenant the revised bill together with a rebate for any overpayment made by the tenant.

(j) A landlord shall not charge or recover, or allow to be charged or recovered, any additional servicing, administrative, establishment, meter-reading, meter-testing, billing, or submetering fee or other fee whatsoever, however denominated.

(k) Water usage separately charged to tenants pursuant to this section shall be delivered by the water company to the landlord and such landlord shall:- (1) be the consumer; (2) for billing purposes, be the customer of record; (3) be responsible for payment of the water company bills; and (4) be subject to any actions of the water company for nonpayment.

(l) In the event of nonpayment of a bill to a water company by the landlord, such water company shall have all the remedies against the customer of the water company available pursuant to any law, rule or regulation. A landlord may not shut off or refuse water service to a tenant on the basis that the tenant has not paid a separately assessed submetered water usage charge.

(m) The landlord shall retain an affirmative obligation to maintain in good working order the water supply system to each dwelling unit and any component thereof, including any water conservation device and submeter installed pursuant to this section, and to respond in a timely manner to any request by the tenant for the repair of any defect or malfunctioning in such water supply system, including any leak. Such water supply system to any dwelling unit and any component thereof including, but not limited to, any water conservation device and submeter installed pursuant to this section, shall be governed by and maintained in accordance with the state sanitary code. In the event of any overcharge by the landlord or any violation of the state sanitary code, the tenant shall have all rights and remedies provided under law for such overcharges or such violations including, but not limited to, the rights and remedies provided under chapters 111, 186 and 239.

(n) Upon receipt of a bill for water usage from the landlord and within the time allowed for paying the bill, a tenant may request that a person or entity with expertise in the installation and operation of water submeters and with no financial or other relationship with the landlord, test the submeter for the dwelling unit leased by the tenant to determine whether it is accurately measuring the water being used in the dwelling unit. If the submeter is found to be measuring more water than is being used in the dwelling unit, the landlord shall install a new submeter at his own expense and shall also pay for the cost of the test. In addition, the person or entity conducting the test shall determine as accurately as possible the amount of water that was improperly measured by the submeter in both the prior and current billing periods. The landlord shall calculate the amount the tenant was overcharged for the prior billing period and reduce the bill by that amount, or, if the tenant has already paid the bill, give the tenant a rebate in that amount. Upon receipt from the water company of the bill for the current billing period, the landlord shall calculate the amount of the bill attributable to the excessive measurement by the submeter and reduce the bill to the tenant by that amount prior to sending it to the tenant. If the submeter is found to be measuring no more water than is being used in the dwelling unit, the tenant shall pay for the cost of the test; provided, however, that if the tenant does not pay for the cost of the test, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered a part of the bill for purposes of paragraph (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(o) In the event of a repair of a leak in the water supply system to a dwelling unit, the landlord shall determine as accurately as possible the amount of water that was measured on the submeter for the dwelling unit as a result of such leak, after a review of the billing records for the dwelling unit and consultation with the licensed plumber repairing the leak. The landlord shall then determine the amount of the bill for the billing period in which the leak occurred that was attributable to such leak and reduce the bill to the tenant by that amount or, if such bill has already been paid, grant the tenant a rebate in that amount; provided, however, that with regard to any leak about which the tenant knew or should have known, the landlord shall only be required to reduce the bill to the tenant, or to grant a rebate to the tenant, by or in an amount attributable to the water usage measured on the submeter as a result of the leak between the date the tenant gave notice to the landlord of the leak and the date the leak was repaired.

(p) A landlord may impose a charge for water use on the tenant of a dwelling unit that is connected directly to a meter installed by a water company; provided that the meter measures only water that is supplied for the exclusive use of the dwelling unit and only to an area within the exclusive possession and control of the tenant of such dwelling unit and does not measure water usage for any portion of any common area or by any other party or dwelling unit. The landlord and tenant shall have all of the same rights and obligations with respect to water charges for such dwelling unit that landlords and tenants have under this section with respect to water charges for any dwelling unit connected to a submeter; provided, however, that the landlord shall not be required to include in the certificate required by subsection (c) the information required by clause (3) of said subsection (c) for dwelling units connected to a submeter; and provided further, that subsection (n) shall not apply to dwelling units connected directly to a meter installed by a water company. Upon a request by the tenant of a dwelling unit connected directly to a meter installed by a water company, the landlord shall apply for a test of the meter to determine its accuracy in accordance with section 10 of chapter 165. The test shall be conducted in accordance with said section 10. The tenant shall reimburse the landlord for any cost incurred in connection with such test. If the tenant does not reimburse the landlord for such cost, the landlord may add such cost to the next bill sent to the tenant and such cost shall be considered to be part of the bill for purposes of subsection (f) and clause (i) of subsection (4) of section 15B of chapter 186.

(q) Nothing in this section shall be construed to increase or expand, change, eliminate, reduce or otherwise limit the liabilities or obligations of any water company that are set forth in any law, rule, regulation or order to the tenant

of a dwelling unit who is receiving water provided to the building by the water company.

(r) Nothing in this section shall affect or impair the powers and duties of the department of environmental protection or the department of public health with respect to water supply under chapter 111.

(s) No charge for water usage may be imposed on the tenant of any dwelling unit in a public housing development pursuant to chapter 200 of the acts of 1948, chapter 667 of the acts of 1954, chapter 705 of the acts of 1966, or chapter 689 of the acts of 1974.

(t) The department of public health shall promulgate such additional regulations to the state sanitary code as it determines to be necessary to implement this section.

History:

Added by Acts 2004, c. 417, §2, eff. 3/16/2005.

§ 239:8A. Rent withholding; grounds; amount claimed; presumptions and burden of proof; procedures

In any action under this chapter to recover possession of any premises rented or leased for dwelling purposes, brought pursuant to a notice to quit for nonpayment of rent, or where the tenancy has been terminated without fault of the tenant or occupant, the tenant or occupant shall be entitled to raise, by defense or counterclaim, any claim against the plaintiff relating to or arising out of such property, rental, tenancy, or occupancy for breach of warranty, for a breach of any material provision of the rental agreement, or for a violation of any other law. The amounts which the tenant or occupant may claim hereunder shall include, but shall not be limited to, the difference between the agreed upon rent and the fair value of the use and occupation of the premises, and any amounts reasonably spent by the tenant or occupant pursuant to section one hundred and twenty-seven L of chapter one hundred and eleven and such other damages as may be authorized by any law having as its objective the regulation of residential premises.

Whenever any counterclaim or claim of defense under this section is based on any allegation concerning the condition of the premises or the services or equipment provided therein, the tenant or occupant shall not be entitled to relief under this section unless: (1) the owner or his agents, servants, or employees, or the person to whom the tenant or occupant customarily paid his rent knew of such conditions before the tenant or occupant was in arrears in his rent; (2) the plaintiff does not show that such conditions were caused by the tenant or occupant or any other person acting under his control; except that the defendant shall have the burden of proving that any violation appearing solely within that portion of the premises under his control and not by its nature reasonably attributable to any action or failure to act of the plaintiff was not so caused; (3) the premises are not situated in a hotel or motel, nor in a lodging house or rooming house wherein the occupant has maintained such occupancy for less than three consecutive months; and (4) the plaintiff does not show that the conditions complained of cannot be remedied without the premises being vacated; provided, however, that nothing in this clause shall be construed to deprive the tenant or occupant of relief under this section when the premises are temporarily vacated for purposes of removal or covering of paint, plaster, soil or other accessible materials containing dangerous levels of lead pursuant to section one hundred and ninety-seven of chapter one hundred and eleven.

Proof that the premises are in violation of the standard of fitness for human habitation established under the state sanitary code, the state building code, or any other ordinance, by-law, rule or regulation establishing such standards and that such conditions may endanger or materially impair the health, safety or well-being of a person occupying the premises shall create a

presumption that conditions existed in the premises entitling the tenant or occupant to a counterclaim or defense under this section. Proof of written notice to the owner or his agents, servants, or employees, or to the person to whom the tenant or occupant customarily paid his rent, of an inspection of the premises, issued by the board of health, or in the city of Boston by the commissioner of housing inspection, or by any other agency having like powers of inspection relative to the condition of residential premises, shall create a presumption that on the date such notice was received, such person knew of the conditions revealed by such inspection and mentioned in such notice. A copy of an inspection report issued by any such agency, certified under the penalties of perjury by the official who inspected the premises, shall be admissible in evidence and shall be prima facie evidence of the facts stated therein.

There shall be no recovery of possession pursuant to this chapter pending final disposition of the plaintiff's action if the court finds that the requirements of the second paragraph have been met. The court after hearing the case may require the tenant or occupant claiming under this section to pay to the clerk of the court the fair value of the use and occupation of the premises less the amount awarded the tenant or occupant for any claim under this section, or to make a deposit with the clerk of such amount or such installments thereof from time to time as the court may direct, for the occupation of the premises. In determining said fair value, the court shall consider any evidence relative to the effect of any conditions claimed upon the use and occupation of residential premises. Such funds may be expended for the repair of the premises by such persons as the court after a hearing may direct, including if appropriate a receiver appointed as provided in section one hundred and twenty-seven H of chapter one hundred and eleven. When all of the conditions found by the court have been corrected, the court shall direct that the balance of funds, if any, remaining with the clerk be paid to the landlord. Any tenant or occupant intending to invoke the provisions of this section may, after commencement of an action under this chapter by the landlord, voluntarily deposit with the clerk any amount for rent or for use and occupation which may be in dispute, and such payments shall be held by the clerk subject to the provisions of this paragraph.

There shall be no recovery of possession under this chapter if the amount found by the court to be due the landlord equals or is less than the amount found to be due the tenant or occupant by reason of any counterclaim or defense under this section. If the amount found to be due the landlord exceeds the amount found to be due the tenant or occupant, there shall be no recovery of possession if the tenant or occupant, within one week after having received written notice from the court of the balance due, pays to the

clerk the balance due the landlord, together with interest and costs of suit, less any credit due the tenant or occupant for funds already paid by him to the clerk under this section. In such event, no judgment shall enter until after the expiration of the time for such payment and the tenant has failed to make such payment. Any such payment received by the clerk shall be held by him subject to the provisions of the preceding paragraph.

Any provision of any rental agreement purporting to waive the provisions of this section shall be deemed to be against public policy and void. The provisions of Section two A and of section eighteen of chapter one hundred and eighty-six shall apply to any tenant or occupant who invokes the provisions of this section.

CERTIFICATE OF COMPLIANCE

Pursuant to Mass. R. App. P. 16(k), I, Lawrence J. Farber, Esq., hereby certify that the foregoing brief complies with the rules of court that pertain to the filing of briefs, including, but not limited to:

Mass. R. A. P. 16 (a)(13) (addendum);
Mass. R. A. P. 16 (e) (references to the record);
Mass. R. A. P. 18 (appendix to the briefs);
Mass. R. A. P. 20 (form and length of briefs, appendices, and other documents); and
Mass. R. A. P. 21 (redaction).

I further certify that the foregoing brief complies with the applicable length limitation in Mass. R. App. P. 20, because it is produced in the monospaced font, Courier New, at size 12, 10 characters per inch, and contains 25 total, non-excluded pages.

/s/ Lawrence Farber
Lawrence J. Farber, Esq.
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CERTIFICATE OF SERVICE

Pursuant to Mass. R. App. P. 13(e), I, Lawrence J. Farber, Esq., hereby certify that on the 15th day of June, 2022, and on behalf of the Plaintiff-Appellee, Cassandra Ferreira, in the matter on appeal as Cassandra Ferreira v. Laural Charland & Others, Docket No. 2022-P-0300, I have made service of the foregoing *Brief of Cassandra Ferreira*, upon counsel of record for the Defendant-Appellant, Laural Charland, via the electronic filing system at EFileMA.com or email to:

Gabriel L. Fonseca, Esq.
Community Legal Aid
One Monarch Place, Suite 400
Springfield, MA 01144
gfonseca@cla-ma.org

And upon the Defendants, Jason Charland and James Vasquez, via first-class mail, postage prepaid, to:

Jason Charland
51 Ray Street
Ludlow, MA 01056

James Vasquez
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/s/ Lawrence Farber
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